

**BEFORE THE FEDERAL MARITIME COMMISSION
OFFICE OF ADMINISTRATIVE LAW JUDGES
WASHINGTON, D.C.**

DOCKET NO. 25-24

SOUTHERN INTERNATIONAL CO., LTD.,
Complainant,

v.

DAYNAMEZ GROUP OF COMPANIES LLC,
Respondent.

**COMPLAINANT SOUTHERN INTERNATIONAL CO., LTD.'S
OPPOSITION TO RESPONDENT'S MOTION FOR AN
EXTENSION OF TIME**

I. INTRODUCTION

Complainant Southern International Co., Ltd. ("SIC") respectfully opposes Respondent Daynamez Group of Companies LLC's ("Daynamez") Motion for an Extension of Time to Respond to the Motion to Compel ("Extension Motion"). Daynamez's response to SIC's Motion to Compel was due no later than July 13, 2026. Daynamez neither filed a response nor sought an extension by that deadline. Instead, it filed the Extension Motion on July 14, 2026, after the response period had expired.

The request is therefore governed by 46 C.F.R. § 502.102(b), which treats a post-deadline motion as a request to accept a late filing, requires the motion to be accompanied by the document sought to be filed late, and permits consideration only upon a showing of exceptional circumstances or as justice may require. Daynamez did not attach its proposed response to the Motion to Compel and did not identify any



exceptional circumstance that prevented either a timely response or a timely request for enlargement.

Daynamez's brief email seeking SIC's consent does not cure those defects. Counsel sent that email only approximately ninety-three minutes before filing the Extension Motion, after the underlying deadline had already expired. SIC did not consent. The email did not identify any exceptional circumstance, propose a discussion, request a response by a specified time, or provide a reasonable opportunity for the good-faith conferral contemplated by 46 C.F.R. § 502.71(a).

For the reasons set forth below, SIC respectfully requests that Respondent's Motion for an Extension of Time be denied and that SIC's Motion to Compel be considered on the existing record as ripe and unopposed. SIC does not consent to any enlargement of Respondent's expired response deadline.

II. RELEVANT BACKGROUND

1. On July 6, 2026, SIC filed and served its Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production, together with a certification of good-faith conference, an appendix, and the native files identified in the appendix. Service was made by email on Daynamez's counsel and representative.

2. Under 46 C.F.R. §§ 502.71(b), 502.101, 502.116, and 502.150(a)(3), Daynamez had seven days after service to respond. Applying the Commission's computation-of-time rule, the response deadline expired no later than July 13, 2026.

3. At approximately 7:34 p.m. EDT on July 14, 2026, Daynamez's counsel sent Mr. Nguyen Tien Phuong a one-paragraph email requesting a seven-day extension.

The email stated that the Motion to Compel was extensive, that Daynamez had been working on it, and that it needed more time. A true copy is attached as Exhibit A.

4. Approximately ninety-three minutes later, at about 9:07 p.m. EDT, Daynamez filed the Extension Motion without receiving SIC's consent. The Extension Motion acknowledges that Daynamez did not seek relief earlier and did not attempt to confer earlier. It does not state whether the requested relief is opposed, as required by 46 C.F.R. § 502.71(a).

5. On July 15, 2026, the Office of Administrative Law Judges directed SIC to respond to the Extension Motion by 5:00 p.m. EDT on July 16, 2026. SIC timely submits this Opposition pursuant to that direction.

III. ARGUMENT

A. The Extension Motion Is an Unsupported Request to Accept a Late Filing Under 46 C.F.R. § 502.102(b).

Section 502.102 distinguishes between a timely request for enlargement and a request made after the filing date has passed. A motion submitted after the scheduled filing date "will be considered a request to accept late filing," "must be accompanied by the document," and will be considered only when "exceptional circumstances are shown or as justice may require." 46 C.F.R. § 502.102(b).

Daynamez did not satisfy either the express filing requirement or the substantive standard imposed by Rule 502.102(b). Because the Extension Motion was filed after the response deadline, it was required to be accompanied by the proposed response to the Motion to Compel. It was not. The Extension Motion also identifies no exceptional event that prevented Daynamez from filing either a timely response or, at

minimum, a timely request for enlargement. Nor does the Extension Motion establish why justice requires acceptance of a late response under the circumstances presented here. Without the proposed response, the Presiding Officer cannot assess the actual scope of the proposed submission, whether the asserted additional time is reasonably necessary, or the effect that accepting the late filing would have on the remaining discovery schedule. The Extension Motion therefore fails to satisfy § 502.102(b).

B. The Reasons Offered Do Not Explain the Failure to Act Before the Deadline.

Daynamez relies on the length of SIC's appendix, the number of shipments in the underlying case, time-zone differences, the asserted usefulness of a live conference, and the time needed to address SIC's discovery contentions. Those circumstances do not explain why Daynamez failed to file either its response or a short extension request before the deadline expired.

The size and subject matter of the Motion to Compel were known upon service. Time-zone differences have existed throughout this proceeding. The Motion to Compel does not require a separate merits analysis of each container; it seeks defined categories of relief concerning Daynamez's own discovery responses and production, including verification, source and native records, payment tracing, production identification, and a compliant response to Request for Admission No. 12. SIC also expressly narrowed its motion to deficiencies that remained after Daynamez's June 12 supplementation and did not seek relief for matters adequately cured.

Nor does the reference to a live conference establish a basis for late filing. Before moving to compel, SIC repeatedly invited Daynamez to cure the identified

deficiencies and advised that, if Daynamez believed a call was necessary, it should first identify in writing the specific issues requiring discussion. Daynamez did not identify those issues before SIC filed its Motion to Compel. See Motion to Compel Appendix, Ex. 8, CMTC-0076 through CMTC-0078. A generalized suggestion that a conference “would be useful” does not explain the missed deadline or supply the showing required by § 502.102(b).

The Federal Rules of Civil Procedure do not displace the directly applicable Commission rule. See 46 C.F.R. § 502.12. Even if the excusable-neglect framework of Federal Rule of Civil Procedure 6(b)(1)(B) is consulted by analogy, the inquiry is an equitable one that considers all relevant circumstances, including prejudice, the length of the delay and its effect on the proceeding, the reason for the delay, including whether it was within the movant’s reasonable control, and whether the movant acted in good faith. *Pioneer Inv. Servs. Co. v. Brunswick Assocs. Ltd. P’ship*, 507 U.S. 380, 395 (1993). Here, the circumstances cited by Daynamez were known and manageable before the deadline. Most importantly, the Extension Motion offers no particularized explanation why Daynamez could not file either its response or a short request for enlargement before the response period expired.

C. The Last-Minute Email Did Not Constitute the Meaningful Conferral Contemplated by Rule 502.71(a).

The Extension Motion states that “[a]n email was sent to the other party seeking a seven day extension.” That statement is literally accurate but omits material context. Counsel sent the one-paragraph request after the underlying deadline had expired and only approximately ninety-three minutes before filing the Extension

Motion. The email did not identify exceptional circumstances, propose any discussion, request a response by a specified time, or afford SIC a reasonable opportunity to consider and communicate its position. SIC did not consent to the extension.

Under Rules 502.69(g) and 502.71(a), the Extension Motion is a non-dispositive motion subject to the duty to confer. Before filing, the moving party must make a good-faith effort to determine whether the requested relief is opposed and, if so, to narrow the areas of disagreement. The motion must also state the conferral effort made and whether the requested relief is opposed.

Here, Daynamez sent only a brief email seeking SIC's consent after the underlying response deadline had already expired, then filed the Extension Motion approximately ninety-three minutes later without receiving SIC's consent. The Extension Motion also failed to state whether the requested relief was opposed. These circumstances do not demonstrate the good-faith conferral contemplated by Rule 502.71(a) and do not cure Daynamez's separate noncompliance with Rule 502.102(b).

D. The Discovery Record Weighs Against Further Unsupported Delay.

The present request does not arise in isolation. SIC served a detailed deficiency letter and request-by-request attachment on May 29, 2026; allowed opportunities to cure; reviewed Daynamez's June 12 supplementation; acknowledged the matters that had been cured; narrowed the relief sought; and made final efforts to resolve the remaining disputes without motion practice. The pending Motion to Compel and Appendix document that history. The Extension Motion does not identify a new issue, an unforeseen event, or a concrete completion plan. Granting another unsupported

extension would further delay resolution of discovery disputes that have already been the subject of extensive correspondence and partial supplementation.

E. The Motion to Compel Should Be Decided on the Existing Record.

Daynamez's failure to file a timely response does not entitle SIC to an automatic grant of the Motion to Compel. The Presiding Officer retains full authority to evaluate each discovery issue and the relief requested. It does mean, however, that no timely response to the Motion to Compel is presently before the Presiding Officer. If the Extension Motion is denied, the Motion to Compel should be determined on the existing record, on which it presently stands unopposed. This disposition would enforce the Commission's filing requirements without treating the absence of a timely response as a substitute for consideration of the merits.

IV. CONCLUSION

For the foregoing reasons, SIC respectfully requests that Respondent's Motion for an Extension of Time be denied and that SIC's Motion to Compel be determined on the existing record, on which it presently stands unopposed. SIC does not consent to any enlargement of Respondent's expired response deadline.

Respectfully submitted,

SOUTHERN INTERNATIONAL CO., LTD.



By: _____

Nguyen Tien Phuong

Director and Authorized Corporate Representative

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Giám Đốc
Nguyễn Tiến Phương

Dated: July 16, 2026

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VERIFICATION

I, Nguyen Tien Phuong, declare that I am the Director and authorized corporate representative of Southern International Co., Ltd.; that I have read the foregoing Opposition; and that the factual statements made in it are true and correct to the best of my knowledge, information, and belief after reasonable inquiry. I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on July 16, 2026, in Ho Chi Minh City, Vietnam.

By: _____

Nguyen Tien Phuong

Director and Authorized Corporate Representative

Southern International Co., Ltd.



Gram Đốc

Nguyễn Tiến Phương



CERTIFICATE OF SERVICE

I certify that on July 16, 2026, a true and correct copy of the foregoing Complainant Southern International Co., Ltd.'s Opposition to Respondent's Motion for an Extension of Time, including Exhibit A, was served by electronic mail upon the following:

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Email: secretary@fmc.gov

Courtesy copy:
Office of Administrative Law Judges
Email: judges@fmc.gov

By: _____
Nguyen Tien Phuong
Director and Authorized Corporate Representative
Southern International Co., Ltd.



Giám Đốc

Nguyễn Tiến Phương



EXHIBIT A
RESPONDENT'S JULY 14, 2026 EDT / JULY 15,
2026 VIETNAM-TIME EMAIL REQUESTING
CONSENT TO A SEVEN-DAY EXTENSION



FMC case-/Docket Number 25-24/Southern International Co., Ltd. v. Daynamez Group of Companies

From raabdaniel57@gmail.com <raabdaniel57@gmail.com>

Date Wed 2026-07-15 6:34 AM

To Phuong Nguyen <southern@southern.com.vn>

Dear Mr. Phuong:

We would respectfully ask for a seven day extension of time to respond to the Motion to Compel. It is quite extensive. We have been working on it and still need more time. You disputed many responses and answers.

Very truly yours,

Daniel W. Raab

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